

Amendment No. 1 to HB1408

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1429*

House Bill No. 1408

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 4-3-1016, is amended by adding the following as a new subsection:

(m) In the fiscal year ending June 30, 2025, transfers are authorized from the Access Tennessee health insurance program fund, created or referenced in title 56, chapter 7, part 29.

SECTION 2. Tennessee Code Annotated, Section 67-6-103, is amended by adding the following language as a new subsection (v):

(1) As used in this subsection (v), "tire" has the same meaning as defined in § 67-4-1602.

(2) Notwithstanding the allocations provided for in subsection (a), all monies received under this chapter from the sale, use, consumption, or distribution of new or used tires on or after July 1, 2025, must be earmarked and allocated to the highway fund. During the 2025-2026 fiscal year, the amount apportioned and distributed pursuant to this subdivision (v)(2) must not exceed eighty million dollars (\$80,000,000), and monies received above this amount must be apportioned and distributed pursuant to subsection (a).

(3) Notwithstanding this subsection (v) to the contrary, no portion of the revenue derived from the increase in the rate of sales and use tax allocated to educational purposes, pursuant to chapter 529, § 9 of the Public Acts of 1992, and no portion of the revenue derived from the increase in the rate of sales and use tax from six percent (6%)

to seven percent (7%), pursuant to chapter 856, § 4 of the Public Acts of 2002, shall be apportioned and distributed pursuant to this subsection (v). All such revenue must continue to be allocated as provided in chapter 529, § 9 of the Public Acts of 1992, and chapter 856, § 4 of the Public Acts of 2002, respectively.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.